



Prosecutions Division

Judgment Notifier



Nguyen v The Queen [2020] HCA 23

The High Court of Australia (HCA) has considered the issue of whether the prosecution was obliged to tender the record of interview of an accused when it contained “mixed statements” (that is, both inculpatory comments (admissions) and exculpatory comments). The HCA examined the extent to which this decision falls under ‘prosecutorial discretion’ and whether the prosecution’s obligation to put their case fully and fairly requires the tender of such evidence.

BACKGROUND

The appellant (accused in the matter) was charged with offences against the *Criminal Code* (NT), being ‘one count of unlawfully causing serious harm to another and one count of assault aggravated by the use of an offensive weapon’¹, and pleaded not guilty to both charges. The alleged offending occurred in circumstances where the appellant and two victims had been at a party together. The Crown case was that the appellant had used a bottle of beer to assault one victim, causing him a head injury, and had thrown a bottle of beer at a second victim.

The appellant had participated in a recorded interview with police prior to charges being laid. His comments in the interview ‘offered an explanation for his conduct which could be taken to be a claim of self-defence’² as he ‘admitted throwing the bottles but said, in effect, that he did so in self-defence’³. It was ‘not suggested that the statements made by the appellant were demonstrably untrue or unreliable’⁴.

At his first trial in the Supreme Court of the Northern Territory, the prosecution played and tendered into evidence the appellant’s recorded interview. The jury were unable to reach a verdict in this trial⁵.

At the second trial the prosecution made a **tactical decision** not to tender the record of interview, on the basis that the appellant could give evidence from the witness box should he choose to. The prosecutor said ‘that if the exculpatory statements were given in evidence the appellant would not be subject to cross-examination on that account’⁶.

¹ *Nguyen v The Queen* [2020] HCA 23 at [6].

² *Ibid* at [2].

³ *Ibid* at [10].

⁴ *Ibid* at [3].

⁵ *Ibid* at [11].

⁶ *Ibid* at [11].

The appellant elected not to give evidence in the trial. Counsel for defence made application to stay the trial and two questions were referred to the Full Court of the Supreme Court of the Northern Territory.

Question 1: Is the recorded interview...admissible in the Crown case?

Question 2: Is the Crown obliged to tender the recorded interview?

After consideration, the Full Court of the Supreme Court of the Northern Territory held the answer to Question 1 to be “Yes” and the answer to Question 2 to be “No”.⁷

Counsel for defence appealed the outcome of **Question 2** to the HCA, asserting lack of fairness to the appellant by the prosecution in not tendering the recorded interview.

DECISION

The HCA first examined the statutory authorities governing the admissibility of evidence of “mixed statements” in records of interview.⁸ Pursuant to s 81 of the *Evidence (National Uniform Legislation) Act 2011* (NT):

- 1) The hearsay rule and the opinion rule do not apply to evidence of an admission.
- 2) The hearsay rule and the opinion rule do not apply to evidence of a previous representation:
 - a) that was made in relation to an admission at the time the admission was made, or shortly before or after that time; and
 - b) to which it is reasonably necessary to refer in order to understand the admission.

The HCA reasoned that ‘it is through the combined operation of s 81(1) and (2) that the exculpatory aspects of a mixed statement may be admissible’⁹.

The HCA, at [24], cited *Mule v The Queen*¹⁰, in commenting on the weight that may be attributed to such evidence once admitted:

Howsoever mixed statements come to be admitted into evidence they are invariably subject to a direction to the jury that they may give less weight to exculpatory assertions than to admissions and that it is for them to decide what weight is to be given to a particular statement. The rationale for the direction is that exculpatory statements are not statements made against interest, are not made on oath and are not subject to cross-examination.

The HCA then considered the practices and principles that apply to the conduct of criminal trials and the case law authorities underpinning these. Relevantly, at [26], the Court cited *R v Soma*¹¹ to confirm:

Another fundamental principle affecting the conduct of a trial is that the prosecution must put its case both fully and fairly before the jury.

⁷ *Nguyen v The Queen* [2020] HCA 23 at [16].

⁸ It is noted that the provisions in the *Evidence (National Uniform Legislation) Act 2011* (NT) relating to ‘hearsay’ and ‘admissions’, as relevant in this case, are identical to those in the *Evidence Act 2008* (Vic).

⁹ *Nguyen v The Queen* [2020] HCA 23 at [21].

¹⁰ *Mule v The Queen* (2005) ALJR 1573 at 1580.

¹¹ *R v Soma* (2003) 212 CLR 299 at 308.

And reiterated this point at [32]:

... there can be no question about the obligation of the prosecution to present its case fully and fairly. It is an obligation which informs the rules of conduct of prosecutors which apply to members of the legal profession in the Northern Territory. It is an obligation which has been reiterated in a number of decisions of this Court as a fundamental principle. And it is that fundamental principle which resolves the question on this appeal.

In respect to prosecutorial discretion, the HCA made these comments at [35]:

The tender of evidence by the Crown cannot be compelled by a trial judge¹² although in practice a trial judge might suggest that the prosecutor reconsider a decision not to tender certain evidence. A trial judge might do so where it is foreseen that a failure to do so may result in a miscarriage of justice. Whilst the decision remains one for the prosecutor to make, the reality is that if the exercise of that discretion miscarries the accused might be denied a fair trial.

And at [36]:

It has been said that the concept of a fair trial cannot comprehensively or exhaustively be defined¹³. But there can be no doubt that fairness encompasses the presentation of all available, cogent and admissible evidence.

The HCA held that these principles of fairness apply to “mixed statement” interviews, as ‘they apply to the tender of all evidence which may properly and fairly inform the jury about the guilt or otherwise of the accused’¹⁴.

The HCA held, relevant to the principal question, at [41]:

...where an accused provides both inculpatory and exculpatory statements to investigating police officers, it is to be expected that the prosecutor will tender that evidence in the Crown case, unless there is good reason not to do so, if the prosecutorial duty is to be met.

And at [44] the Court cited *R v Apostilides* in making the following further points in regard to the valid exercise of prosecutorial discretion:

What has been said about the obligations which attach to the power or discretion of a prosecutor with respect to the tender of evidence does not detract from the need for a prosecutor to consider factors about particular evidence which may properly influence the decision whether to call that evidence. There may be valid reasons not to do so.

The decision whether to tender evidence should be guided in each case by the overriding interests of justice. It should only be where the reliability or credibility of the evidence is demonstrably lacking that the circumstances may be said to warrant a refusal, on the part of a prosecutor, to call such evidence¹⁵.

¹² *Whitehorn v The Queen* (1983) 152 CLR 657 at 674.

¹³ *Dietrich v The Queen* (1992) 177 CLR 292

¹⁴ *Nguyen v The Queen* [2020] HCA 23 at [37].

¹⁵ *R v Apostilides* (1984) CLR 563 at 575-576.

At [45] the Court held:

A prosecutor is to be expected to act to high professional standards and therefore to be concerned about the presentation of evidence to the jury. It is to be expected that some forensic decisions may need to be made. It is not to be expected that they will be tactical decisions which advance the Crown case and disadvantage the accused.

Ultimately, the HCA allowed the appeal and held that the answer to Question 2 should be “Yes”¹⁶.

IMPACT ON PROSECUTORS

Prosecutors are encouraged to read the full High Court decision and comments therein that relate to the appropriate exercise of prosecutorial discretion. Prosecutors should be mindful that while a Magistrate cannot compel the tender of records of interview (or any evidence, more broadly), a decision not to tender such evidence may result in a miscarriage of justice being identified upon review.

¹⁶ *Nguyen v The Queen* [2020] HCA 23 at [47].